

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

X

JAMES WRIGHT,

Plaintiff,

-against-

SUMMONS

Index No.

Date Index No. Purchased

Plaintiff Designates

Bronx County as Place of Trial.

Basis of Venue is Plaintiff's

Residence Pursuant to CPLR. Section 503(a)

Jury Trial Demanded

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, P.O. ANDRES MUNOZ, SHIELD NO.
12903, IN HIS INDIVIDUAL CAPACITY,
P.O. SGT. EDWIN SOTO, SHIELD NO. 5614, IN HIS INDIVIDUAL
CAPACITY AND P.O. ROBERT LYON, SHIELD NO 243,
IN HIS INDIVIDUAL CAPACITY,

Defendants,

X

You are hereby summoned to answer the Complaint in this action and to serve a copy of your answer or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: January 6, 2022

Bronx, New York

By


Welton K. Wisham, Esq.

The Law Offices of Welton K. Wisham
1200 Waters Place, Suite 105
Bronx, New York 10461
718- 924-3557 Office
718-678-8062 Fax

Defendants Address:

The New York City Police Department
One Police Plaza,
York, New York 10007

City of New York Department of Law
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
 COUNTY OF BRONX**

X

JAMES WRIGHT,

Plaintiff.

-against-

**ECF
 COMPLAINT
 Index No.
 Plaintiff Designates
 Bronx County as Place of Trial,
 Jury Trial Demanded**

**CITY OF NEW YORK, NEW YORK CITY POLICE
 DEPARTMENT, P.O. ANDRES MUNOZ, SHIELD NO.
 12903, IN HIS INDIVIDUAL CAPACITY,
 P.O. SGT. EDWIN SOTO, SHIELD NO. 5614, IN HIS INDIVIDUAL
 CAPACITY, AND P.O. ROBERT LYON, SHIELD NO 243,
 IN HIS INDIVIDUAL CAPACITY,**

Defendants,

X

Plaintiff, James Wright, by his attorney, Welton K. Wisham, Esq. of The Law office of Welton K. Wisham, alleges upon information and belief, the following against Defendants, The City of New York, the New York City Police Department, and Police Officers, Andres Munoz, Sgt. Edwin Soto, and Robert Lyon, the following that;

PRELIMINARY STATEMENT

1. This action arises out of Defendants' roles in falsely arresting Plaintiff James Wright on August 14, 2020, and charging Mr. Wight with Robbery in the First Degree, P.L. Section 160.15(4), Robbery in the Second Degree, P.L. Section 160.10(1), and Robbery in the Second Degree pursuant to Penal Law Section 160.10(2)(a).
2. All charges related to Plaintiff's arrest were favorably dismissed on February 8, 2021.
3. Plaintiff brings this action pursuant to 42 U.S.C. Section 1983, and under Section 1988 against the individual police officers for False Arrest, False Imprisonment, Malicious

Prosecution and violation of Plaintiffs' right arising under the Fourth and Fourteenth Amendments to the Constitution of the United States.

JURISDICTION

4. This Court has personal jurisdiction over the Defendants because the Defendants transacted business within the State of New York within the meaning of CPLR Section 302(a) (1), and causing injury to the Plaintiff within the State of New York..

5. This Court has concurrent Jurisdiction to hear Plaintiff's federal causes of action pursuant to 42 U. S. C. Section 1983.

VENUE

6. Plaintiff selects Bronx County as the venue for which this action is commence. Venue is predicated on Plaintiff's residence in Bronx, New York, as set forth under McKinney's Consolidated Laws of New York Civil Practice Law and Rules Section 503(a).

PARTIES

7. Plaintiff James Wright is a citizen of the United States and is a resident of Bronx County, State of New York at the commencement of this action.

8. That at all times relevant herein, Defendant, Police Officer Andres Munoz is a duly appointed New York City Police Officer who at the time of this incident was assigned to the Transit Borough Manhattan within the New York City Police Department.

9. Officer Munoz was acting within the scope of his employment and under color of law as an employee of the New York City Police Department on the date of this incident.

10. That officer Munoz was at all times mentioned in this Complaint acting on behalf of the City of New York and the New York City Police Department as an agent, servant, and employee, acting within the scope of his employment by Defendant, City of New York.

11. That officer Munoz, being a duly appointed police officer in the New York City Police Department acted under color of law, that is under color of law of the Constitution of the United States and statutes, laws, charter, ordinances, rules, regulations, custom and usages of the State of New York, and the City of New York.

12. That at all times relevant herein, Defendant, Police Officer Edwin Soto was and still is a duly appointed New York City Police Officer who at the time of this incident was a Sargent assigned to the Transit Borough Manhattan Task Force within the New York City Police Department.

13. Officer Soto was acting within the scope of his employment and under color of law as an employee of the New York City Police Department on the date of this incident.

14. That officer Soto was at all times mentioned in this Complaint acting on behalf of the City of New York and the New York City Police Department as an agent, servant, and employee, acting within the scope of his employment by Defendant, City of New York.

15. That officer Soto, being a duly appointed police officer in the New York City Police Department, acted under color of law, that is under color of law of the Constitution of the United States and statutes, laws, charter, ordinances, rules, regulations, custom and usages of the State of New York, and the City of New York.

16. That at all times relevant herein, Defendant, Police Officer Robert Lyon was and still is a duly appointed New York City Police Officer who at the time of this incident was assigned to the Transit Borough Manhattan within the New York City Police Department.

17. Officer Lyon was acting within the scope of his employment and under color of law as an employee of the New York City Police Department on the date of this incident.

18. That officer Lyon was at all times mentioned in this Complaint, acting on behalf of the City of New York and the New York City Police Department as an agent, servant, and employee, acting within the scope of his employment by Defendant, City of New York.

19. That officer Lyon, being a duly appointed police officer in the New York City Police Department, acted under color of law, that is under color of law of the Constitution of the United States and statutes, laws, charter, ordinances, rules, regulations, custom and usages of the State of New York, and the City of New York.

20. Defendant, City of New York is a municipal corporation duly organized under the laws of the State of New York.

21. At all times relevant and set forth herein, the City of New York acting through the New York City Police Department was responsible for the policies, practices, training, supervision and conduct of the Defendant police officers.

22. That at all relevant times, Defendants have acted or failed to act, as alleged herein, under the color of state law.

STATEMENT OF FACTS

23. That on or about August 14, 2020, at approximately 11:00:a.m, Plaintiff James Wright was living in a New York City Shelter located at 39th Street, in the City of New York.

24. Mr. Wright was living at the Days Inn Hotel where he had resided for approximately six months prior to the August 14, 2020, incident described herein.

25. Mr. Wright, stands six (6) feet tall and weighs approximately 230 lbs. Plaintiff is a dark skin black male.

26. At approximately 11:am on the morning of August 14, 2021, Plaintiff Wright decided to go and buy a slice of pizza located near his residence and began to walk towards 8th Ave, in NYC.

27. Mr. Wright decided to take the A train on 8th Ave, near 42nd street. Plaintiff was alone at the time he left his residence and entered the train station.

28. Plaintiff walked down the stairs to the train station and stopped on the stairs to wait for the A train when he observed a fight between unknown individuals punching each other.

29. Plaintiff turned around and left the train station and began to walk towards 9th Ave when he was stopped and grabbed by several unknown individuals who pulled out weapons and seized Mr. Wright without identifying themselves.

30. Officer Munoz and officers Soto and Lyon are believed to be the officers who were working undercover on the morning of August 14, 2020, who stopped and held Plaintiff in custody by pulling out their guns, and arrested Mr. Wright, without probable cause to have reasonably believed that Plaintiff had in fact been engaged in criminal activity .

31. The Defendant police officers pointed their weapons directly into the face of the Plaintiff who feared for his life.

32. The officers did not inform Mr. Wright that he was under arrest nor did the officers give Plaintiff any Miranda warnings.

33. Mr. Wright demanded to know what he was being arrested for but the officers ignored the Plaintiff's pleas.

34. Plaintiff continued to ask the Defendant police officers "What am I being arrested for?"

35. One of the officers responded by saying "We can't tell you why we're arresting you"!

36. Plaintiff was placed in handcuffs with his hands bound behind his back and placed in a police vehicle.

37. Several onlookers observed Plaintiff being handcuffed and placed into the police vehicle.

38. Plaintiff was taken to a New York City Police Precinct in midtown Manhattan where he was held in custody and placed in a jail cell against his will and without his consent for approximately twenty (20) hours.

39. Plaintiff was seized, fingerprinted, photographed at the precinct.

40. That two or more detectives began to question Mr. Wright about whether or not he knew certain individuals.

41. Mr. Wright informed the officers that he did not know any of the individuals mentioned by the detectives during Plaintiff's interrogation at the precinct.

42. The Detectives at the midtown police precinct took Mr. Wright's telephone without Plaintiff's consent and began to search Plaintiff's for the names of the individuals that the officers believed were linked to the Plaintiff.

43. The officers failed to find the names or any photographs or any form of communication linking connecting the Plaintiff and the individuals known to the Defendant police officers.

44. After approximately twenty hours Mr. Wright was taken to Central Booking located at 100 Centre St. New York, New York.

45. Plaintiff was held at central booking until his arraignment which was held on August 16, 2020, more than twenty-four hours after his arrest.

46. Plaintiff, unable to post bail, was remanded to Rikers Island and placed in a jail cell where Plaintiff was deprived of his liberty for a period of thirty-four days Post Arraignment until his release September 29, 2020.

47. Officer Munoz, with the assistance of officers Edwin Soto and Robert Lyon, prepared a Felon Complaint against Mr. Wright and three other individuals charging Mr. Wright with three counts of Robbery, pursuant to Penal Law Sections, 160.15(4), 160.10(1), and 160.(2)(a),

respectively, knowing that Plaintiff had not possessed a gun, had not assaulted anyone and had not engaged in any criminal activity at the time the officers met and filed the Felony Complaint which the officer submitted to the New York County District Attorney for the commencement of Wright's criminal prosecution .

Felony Complaint

48. Officer Munoz's Felon Complaint accused Mr. Wright of "**forcibly stealing property** and in the course of the commission of the crime and immediate flight therefrom the defendant or another participant in the crime displayed what appeared to be a firearm" the defendants forcible stole property while being aided by another person actually present: the defendants forcibly stole property and in the course of the commission of the crime and immediate flight therefrom the defendants or another participant in the crime caused physical injury to a person who was not a participant in the crime."

Hearsay on Hearsay

49. Officer Munoz further stated in the Felony Complaint that he was informed by Sgt. Edward Soto of the Transit Boro Manhattan Task Force, that he [Soto] is informed by Informant (unknown) who is known to the District Attorney's office that Defendants Robberson and Defendant Cabrera and an unapprehend other attached Informant at the above location in the subway station and that Defendant Robberson displayed a firearm and that the unapprehended other took a bag containing various property belonging to the Informant.

50. Officer Munoz also stated in the Felony Complaint filed with the New York County District Attorney's Office that "he reviewed video surveillance from the location and observed Defendants Robberson, Cabrera and Wright and Gonzoles plus an unapprehended individual ,

walking together immediately before the attack on Informant and that they, left together after the attack on Informant. Cabrera however remained.”

51. Officer Munoz further stated in his Felony Complaint that **he observed Cabrera struggling on the ground with the Informant.** (Emphasis added)

52. Officer Munoz stated that he was informed by officer Robert Lyon that officer Lyon observed Gonzoles state that Gonzoles remained at the top of the stairs of the subway station to stand as a lookout while her co- defendants attacked the Informant.

53. Officer Lyon, according to Officer Munoz’s Complaint, the he, Officer Lyon observed Plaintiff Wright state that he remained at the top of the stairs with Gonzoles to look after Gonzoles while the attacked went forward on Informant.

54. Officer Michael Alvarado, according to officer Munoz, stated to officer Munoz that the Informant suffered substantial pain to his face and back.

55. Nowhere in Officer Munoz Felony Complaint does the state that Plaintiff James Wright attacked, robbed or held a gun at the alleged Informant or assaulted the alleged Informant.

56. The Felony Complaint was legally insufficient on its face for a reasonable police officer to have reasonably believed that Mr. Wright had committed the crimes of Robbery in the First Degree and two counts of Robbery in the Second Degree as charged by police officer Munoz, Alvarado or Lyon.

57. Upon information and belief officers Alvarado and Lyons failed to submit independent accusatory instruments against James Wright.

58. Mr. Wright denies making any statements that he knew the other Defendants charged with the crimes set forth herein.

59. Mr. Wright was arrested without probable cause and his seizure for two months was constitutionally unreasonable. Upon information and belief, the New York County District Attorney's Office did not convene a grand jury as required pursuant to C.P.L. Section 180.80.

No hearings were conducted in the underlying criminal complaint.

60. Mr. Wright was not in possession of any firearm or any other weapon which was allegedly used in an attack on an unnamed Informant.

61. Plaintiff was conscious of his confinement and did not give his consent to such confinement.

62. Plaintiff was confined in the New York City Department of Correction Penal Institution, Rikers Island for approximately two (2) months without probable cause for a reasonable officer to have believed that Plaintiff had in fact committed the above criminal offenses.

63. On February 8, 2020, the case pending against Mr. Wright was favorably dismissed.

64. Plaintiff was confine and was not free to move during his arrest and subsequent confinement at Rikers Island.

65. Plaintiff suffered severe emotional distress from his wrongful and unlawful confinement without probable cause and without legal justification.

66. That the Felony Complaint filed by officer Munoz was filed with the intent to confine Plaintiff without probable cause for a crime that the Defendants knew or should have known was not engaged in criminal activity.

67. Plaintiff Wright suffers severe emotional distress and has locked himself in his bathroom for prolong periods of time dealing with the agony and pain and suffering inflicted upon him by the Defendant officers' unlawful actions.

68. That by reason of the foregoing, the Plaintiff has been injured and has suffered great emotional, and mental distress, and has been greatly injured, and sustained damages in a sum which exceeds the jurisdictional limits of all lower courts.

69. That the Defendant police officers acted with malice and abused their authority as New York City Police Officers under color of law.

70. That officer Munoz's act of submission of his Felony Complaint to the New York County District Attorney's Office for criminal prosecution of the Plaintiff, and officer Munoz's unreasonable reliance upon hearsay of other officers who conveyed false information from an unknown Informant was a flagrant violation of Plaintiff's rights to due process of law under the Fourteenth Amendment to the United States Constitution.

71. That officer Munoz, Soto, and Lyon acted with malice and with deliberate abuse of their authority vested to the officers under color of state law and with deliberate indifference to Plaintiff's Constitutional rights.

**AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JAMES WRIGHT AGAINST DEFENDANT POLICE
OFFICERS ANDRES MUNOZ, SGT EDWIN SOTO, AND ROBERT LYON FOR
MALICIOUS PROSECUTION PURSUANT TO 42 U.S.C SECTION 1983.**

72. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "71", with the same force and effect, as though more fully set forth at length herein.

73. That the Defendants police officers, Andres Munoz, Sgt Edwin Soto and officer Robert Lyon were acting within the scope of their employment and under color of law at the time of Plaintiff's arrest.

74. The underlying Defendants as New York City Police Officers were personally involved in the unlawful arrest and prosecution of the Plaintiff by making false statements to each other in an

attempt to incriminate the Plaintiff for crimes which the officers and officer Munoz knew were false , unreasonably relied upon hearsay information given to him by officer Soto who was allegedly informed by an unnamed Informant who according to officer Soto was known to the District Attorney Office told officer Soto that: “ Defendant Robberson, Defendant Cabrera and an unapprehended other, attacked Informant at the above location in the subway station: that Defendant Robberson display a firearm and that the unapprehended other took a bag containing various property belonging to Informant”

75. Officer Munoz Felony Complaint also stated that “ I have reviewed video surveillance from the above time and location and I observed Defendant Robberson and Defendant Cabrera punch Informant. Video surveillance shows that defendants Robberson, Cabrera, Wright and Gonzoles were walking together immediately before the attack on Informant and the left together immediately after the attack on Informant, minus defendant Cabrera. In person **I observed Defendant Cabrera struggling on the ground at the above location with Informant.**”

76. Officer Munoz Felony Complaint **unreasonably relied on hearsay by officer Robert Lyon** who told Officer Munoz that he observed defendant Gonzoles state in substance that she remained at the top of the stairs to the subway station at the above location to stand as a lookout while her codefendants attacked Informant.

77. Officer Lyons further informed officer Munoz that officer Lyons observed defendant Wright state in substance that he remained at or near the top of the stairs to the subway station with defendant Gonzoles to look after defendant Gonzoles while the attack went forward on Informant.”

78. Plaintiff Wright made no such statements to officer Lyon or any other police officer regarding his knowledge of the events for which he was arrested and accused.

79. Plaintiff Wright did not possess a weapon at the time of his arrest.

80. Mr. Wright made no statements written or oral regarding his knowledge for which he was accused.

81. Officer Munoz did not observe Plaintiff Wright with a weapon nor did the underlying Defendant officers observed Mr. Wright attack anyone at any time prior to Plaintiff's arrest on August 14, 2020, yet the Defendant officers charged Mr. Wright with several counts of robbery, all of which were **favorably dismissed on February 8, 2021.**

82. Plaintiff Wright was arrested and prosecuted without probable cause.

83. Officers Munoz, Soto, and Lyon were responsible for commencing the criminal prosecution against Mr. Wight knowing that the Felony Complaint was facially flawed and lacked probable cause for the arrest and subsequent prosecution of the Plaintiff.

84. Officer Munoz met with officers Edwin Soto, and Robert Lyon who together assisted and processed Plaintiff's arrest.

85. That the Defendant police officers knew or should have known that the Felony Complaint contained false allegations against Mr. James Wright which deprived Plaintiff of his right to liberty secured under the Constitution of the United States.

86. Plaintiff was deprived of his freedom for approximately two months as Plaintiff was placed behind bars in Rikers Island jail cell.

87. Plaintiff is suing officers Munoz, Soto, and Lyon in their personal capacity for their unreasonable and unlawful actions under color of law which deprived Plaintiff of his liberty interest for approximately two months.

88. The Defendant police officers, Munoz, Soto and Lyon exhibited deliberate indifference to Plaintiff's Constitutional rights by arresting Mr. Wright and prosecuting the Plaintiff knowing that Mr. Wright had not engaged in any criminal activity.

Probable Cause

89. Probable cause to arrest exists when the arresting officer has knowledge or reasonably trustworthy information of facts and circumstances that are sufficient to warrant a person of reasonable caution in the belief that the person to be arrested has committed or is committing a crime. See Escalera v. Lunn, 361 F.3d 737, 743 (2d Cir. 2004)

90. The probable cause inquiry is based upon whether the facts known by the arresting officer at the time of the arrest objectively provided probable cause to arrest." Jaegly v. Couch, 439 F.3d, 149, 153(2nd Cir. 2006) (Emphasis added)

91. The Defendant officers Munoz, Soto and Lyon lacked probable cause to have reasonably believed that James Wright had in fact been engaged in an assault and robbery as set forth in officer Munoz's Felony Complaint and lack probable cause to have believed that believe that the criminal proceedings against Plaintiff Wright could succeed.

92. That officer Munoz, Soto and Lyon acted with malice in the arrest and prosecution of the Plaintiff, James Wright.

93. The prosecution was terminated in Plaintiff's favor.

94. Officers Munoz, Soto and Lyon knew or should have known prior to Plaintiff's arrest that there was no evidence sufficient enough to have reasonably believed that Plaintiff committed the crimes of robbery in the First and Second Degree.

95. Section 160.15 (4) states that:" A person is guilty of robbery in the first degree when he forcibly steals property and when in the course of the commission of the crime or of immediate

flight therefrom, he or another participant in the crimes, (4) displays what appears to be a pistol, revolver, rifle shotgun, machine gun or other firearm... P.L. Section 160.15(4).

96. The Felony Complaint filed by officer Munoz did not accuse James Wright of “ **forcibly stealing property**”. Yet the officers charged Plaintiff with this crime, a Class B Felony.

97. The underlying police officers also charged Plaintiff with Robbery in accordance with penal law section 160.10.

98. Penal Law Section 160.10(1) states that “ A **person is guilty of robbery in the second degree when he forcibly steals property** and when he is aided by another person actually resent..”

99. The Felony Complaint filed by officer Munoz and supported by hearsay statements made by officers Soto and Lyon failed to state evidence that James Wright had forcibly stole property from another, an alleged Informant, thus the accusatory instrument was facially insufficient and lacked probable cause to have objectively reasonably believed that James Wright had indeed committed the crime of Robbery in the Second Degree.

100. Officer Munoz’s Felony Complaint also falsely accused Plaintiff of **Robbery in the Second Degree pursuant to P.L. Section 160.10(2)(a)** which states in relevant part that; “ **A person is guilty of robbery in the second degree when he forcibly steals property** and when in the course of the commission of the crime or of immediate flight therefrom, he or another participant in the crime (a) Causes physical injury to any person who is not a participant in the crime...” (emphasis added)

101. Based on the false accusations by the Defendant Officer and by reason of the foregoing, Plaintiff has been injured and has been caused to suffer great emotional, and mental distress, and

has been greatly injured, and sustained damages in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF
OF THE PLAINTIFF, JAMES WRIGHT AGAINST DEFENDANT POLICE OFFICERS
ANDRES MUNOZ, EDWIN SOTO, AND ROBERT LYONS FOR FALSE ARREST AND
FALSE IMPRISONMENT PURSUANT TO 42. U. S.C. SECTION 1983**

102. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through " 101", with the same force and effect as though more fully set forth at length herein.

103. That at all time herein mentioned Defendants police officers Andres Munoz, Edwin Soto and Robert Lyons directly participated and caused Plaintiff's by providing false and misleading information to the New York County District Attorney's Office for the purpose of commencing a prosecution against the Plaintiff which the officers knew or should have known was basely and lacked probable cause to have reasonably believed that the Plaintiff had committed the alleged criminal offenses.

104. The officers met with each other and conferred false, misleading and hearsay evidence against the Plaintiff as set forth more fully in the preceding paragraphs and prepared a Felony Complaint falsely accusing Mr. Wright of criminal activity.

105. That Plaintiff was unreasonably held against his will, not free to move and unreasonably seized and arrested by the Defendant police officers.

106. That upon information and belief, officers Munoz, Soto and Lyon pointed their guns directly into the face of the Plaintiff to seize the Plaintiff and prevent Mr. Wright from his liberty.

107. That Plaintiff posed no threat to the police officers at the time of his arrest and was not armed or carrying any weapons or contraband at the time of his arrest.

108. Plaintiff's seizure conducted by the Defendant police officers was Officer Cruz's detention, seizure and arrest was conducted without any legal basis and without probable cause for Plaintiff's arrest.

109. Mr. Wright was conscious of his detention and seizure and did not consent to his confinement.

110. Plaintiff was seized and held in custody without probable cause.

111. Defendants Munoz, Soto and Lyon as police officers in the City of New York acted in substantial abuse of their power as New York City Police Officers and acted beyond their authority.

112. The officers willfully, knowingly, and intentionally deprived Mr. Wright of his right to liberty and freedom under the Fourth and Fourteenth Amendments to the Constitution of the United States, secured by 42 U.S.C Section 1983.

113. That Plaintiff was unreasonably seized by the three defendant officers who pulled their weapons and pointed their weapons in Mr. Wright's face and forcibly handcuffed, searched, assaulted, and subjected Plaintiff to undue humiliation, personal degradation, abuse, emotional distress, trauma, embarrassment, ridicule, and scorn..

114. As a direct and proximate result of Officers Munoz, Soto and Lyon's misconduct and abuse of authority described above, Plaintiff Wright sustained damages for which he now seeks in an amount which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A THIRD CAUSE OF ACTION AGAINST THE CITY OF NEW
YORK PURSUANT TO 42 U.S.C. SECTION 1983, FOR FAILURE TO TRAIN,
SUPERVISE OR DISCIPLINE DEFENDANTS POLICE OFFICERS MUNOZ,
SOTO AND LYON.**

115. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1 through 114", with the same force and effect as though more fully set forth at length herein.

116. That at all times herein mentioned the individual Defendants of the New York City Police Department involved in the incident complained of herein, were negligently hired, trained, supervised, disciplined, and retained by the defendant, City of New York.

117. That the acts complained of herein resulted from the City of New York, and the New York City Police Department, through their agents, servants and employees, breach of duty to those individuals the officers would come into contact with to properly assign, train, supervise, discipline and retained its employees within the New York City Police Department including Defendants, Munoz, Soto, and Lyon.

118. That the City of New York failed to train, supervise, or discipline the municipal Defendants named herein who unlawfully held and detained Plaintiff by unholstering their weapons and pointing their guns in the face of Plaintiff Wright which caused substantial injuries to the Plaintiff without probable cause or legal justification.

119. That the defendant City of New York's failure to properly assign, train, supervise or discipline its Police Department employees including the named Defendants involved in this incident herein, constituted a practice of acquiescence, and a tolerance of ongoing unconstitutional detentions, and seizures, which allowed the defendants to believe that they could violate plaintiffs' constitutional rights with impunity.

120. By reason of the foregoing, the individual Defendants individually, and through defendant's agents, servants and employees, failed, and refused to use such care in the performance of their duties as a reasonably prudent police officer would have used under similar circumstances, thus

resulting in significant emotional injuries to the plaintiff stemming from approximately two months of unlawful incarceration and loss of liberty.

121. That there was an obvious need for additional training and supervision based on the facts and circumstances alleged by the Plaintiff and supported by Officer Munoz's Felony Complaint which the city was aware of and failed to provide.

122. That by the conduct of the Defendants, as described herein, the City of New York is liable to the Plaintiff under 42 U.S.C. Section 1983 for the violations, under color of state law for violating Plaintiff's right to be free from deprivation of liberty without due process of law under the Fourth and Fourteenth Amendment to the United States Constitution.

123. That the failure of the City of New York, and the New York City Police Department failure to train, supervise or discipline or in any other way control the behavior of the municipal defendants identified herein in the exercise of their official functions, and their failure to enforce the laws of the State of New York, and the regulations of the City of New York Police Department is evidence of the reckless lack of cautious disregard for the rights of the Plaintiff, James Wright.

124. That such conduct, or lack thereof exhibited a lack of the degree of due care which a reasonable and prudent individual would have shown in executing the duties of the Commissioner of the New York City Police Department.

125. That the need for more or better supervision, or training to protect against the constitutional violation was patently obvious which the City of New York failed to provide.

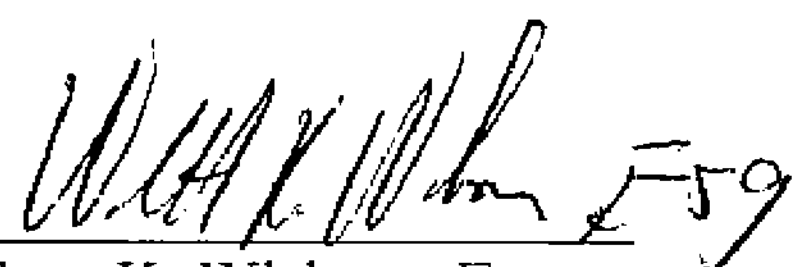
126. As consequence thereof, Plaintiff has been greatly injured.

WHEREFORE, Plaintiff James Wright hereby demands judgment and relief against Defendants jointly and severally as follows:

- A. Awarding Plaintiff compensatory damages in an amount that is fair and equitable to be fixed at trial.
- B. Awarding punitive damages to Plaintiff against officers Andres Munoz, Edwin Soto and Robert Lyon in an amount that would punish Defendants for the willful, wanton, reckless and malicious misconduct alleged in this Complaint that would effectively deter Defendants from future civil rights violations and other unlawful behavior in an amount to be determined at trial.
- C. An award to Plaintiff of the costs and disbursements herein.
- D. An award of reasonable attorney fees under 42 U.S.C. Section 1988.
- E. Granting such other and further relief as this Court may deem just and proper.

Dated: January 6, 2022

Bronx, New York

By 
Welton K. Wisham, Esq.
The Law Office of Welton K. Wisham
1200 Waters Pl. Suite 105
Bronx, New York 10561
(718) 924- 3557 Office
(718) 678-8062 Fax
Attorney for the Plaintiff
Email: wkwisham@optonline.net

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

X

JAMES WRIGHT,

Plaintiff.

AFFIDAVIT

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, P.O. ANDRES MUNOZ, SHIELD NO.
12903, IN HIS INDIVIDUAL CAPACITY,
P.O. SGT. EDWIN SOTO, SHIELD NO. 5614, IN HIS INDIVIDUAL
CAPACITY, AND P.O. ROBERT LYON, SHIELD NO 243,
IN HIS INDIVIDUAL CAPACITY,

Defendants,

X

STATE OF NEW YORK)
) ss.:
COUNTY OF BRONX)

I, **James Wright** , duly sworn, deposes and says under penalty of perjury that
Deponent is the Plaintiff in the within action, that I have read the foregoing Summons and
Complaint and knows the contents thereof ; that the same is true to deponent's own knowledge,
except as to those matters therein stated to be alleged on information and belief, and that as to
those matters deponent believes them to be true.

J Wright

James Wright

1610 Sedgwick Ave. Apt 1E
Bronx, New York 10453

Sworn to before me
This 13 th day of January, 2022
Wilton K. Wiseman, Esq.
NOTARY PUBLIC

WILTON K. WISEMAN, ESQ.
Notary Public, State of New York
No. 02WI6386733
Qualified in Bronx County
Commission Expires 1-28-2023

02WI6386733
1-28-2023